

21CHCV00794 21CHCV00794

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Case Number: 21CHCV00794 Hearing Date: July 16, 2026 Dept: F47

Dept. F47

Date: 7/16/26

Case #21CHCV00794

DEMURRER TO THE
FOURTH AMENDED COMPLAINT

Demurrer filed on 2/23/26.

MOVING PARTY: Defendant Thermo Fisher Scientific Inc.

RESPONDING PARTY: Plaintiff Estate of Rosa Pleitez, by
and through her husband, Rigoberto Pleitez

NOTICE: ok

Demurrer is to the entire Fourth Amended Complaint:

1. Negligence for Wrongful Death

2. Strict Products Liability

3. Survival Action

RULING: The matter will be taken under
submission.

This action arises out of Plaintiff Estate of Rosa Pleitez, by and through her husband, Rigoberto Pleitez's (Plaintiff) claim that from 10/13/19 through at least 9/21/20, Decedent Rosa Pleitez (Decedent) was exposed to chemicals and caustic products produced, manufactured, distributed and/or sold by Defendant Miles Chemical Company, Inc. (Miles Chemical), Macdermid Enthone, Inc. (Macdermid) and others while employed as a janitor for Carbonite Industries in Riverside, California. It is alleged that Decedent developed catastrophic interstitial lung disease with major injury and disability that affected her ability to work and support herself and her family and ultimately, was a substantial factor in her death on or about 3/26/22.

On 10/8/21, Plaintiffs Rosa Pleitez and Rigoberto Pleitez filed the original complaint in this action asserting causes of action for: (1) Strict Liability – Design Defect, (2) Strict Liability – Failure to Warn, (3) Negligence, (4) Breach of Implied Warranty and (5) Loss of Consortium. The original complaint alleged that from 10/13/19 through 9/21/20, Rosa Pleitez/Decedent was exposed to heavy chemicals and caustic products produced, manufactured, distributed and/or sold by different defendants while employed as a janitor at Carbonlite Industries in Riverside, California. (Complaint ¶¶1-2). While Plaintiff's 3rd cause of action in the complaint was titled "negligence," it was actually a claim for negligent products liability as it alleged "negligence in the manufacture, sale and distribution of dangerous and defective product[,] design defects and failure to provide adequate and accurate warnings, contained on their chemical products ..." (Complaint ¶72). The complaint alleged that Decedent discovered her toxic exposure at the Carbonlite factory in September 2020. (Complaint ¶5).

On 3/26/22, Plaintiff Rosa Pleitez/Decedent died. (First Amended Complaint ¶2). On 5/24/23, Plaintiff Estate of Rosa Pleitez, by and through her husband, Rigoberto Pleitez (Plaintiff) filed a First Amended Complaint asserting causes of action for: (1) Wrongful Death and (2) Survival Action. The First Amended Complaint alleges that from 10/13/19 through 9/21/20, Decedent was exposed to defective chemicals produced, manufactured, distributed and/or sold by Defendants while employed as a janitor for Carbonite Industries in Riverside, California. (FAC ¶¶1-2). Plaintiff's 2nd cause of action for survival action in the

First Amended Complaint was based on the same strict liability – design defect, strict liability – failure to warn, products liability – negligence and breach of implied warranty claims alleged in the original complaint. (See FAC ¶153).

Pursuant to a Stipulation and Order, on 4/14/25, Plaintiff filed a Second Amended Complaint alleging causes of action for: (1) Wrongful Death against Miles Chemical, Macdermid and Does 11-200; (2) Survival Action against Miles Chemical, Macdermid and Does 1-200 and (3) Negligence against Prologis and Does 1-10. (See 4/14/25 Revised Stipulation & Order and Second Amended Complaint).

After the Court sustained the demurrer of Defendants Prologis Targeted U.S. Logistics Fund, L.P. (Doe 1) and Prologis, L.P (Doe 2) (collectively, the Prologis), on 8/21/25, Plaintiff filed a Third Amended Complaint alleging causes of action for: (1) Wrongful Death against all Defendants including Does 1-200; (2) Strict Products Liability against Miles Chemical Company, Inc., Macdermid Enthone including Does 1-200; and (3) Survival Action “Against Defendants and Does 1 through 200, Inclusive.”

On 9/10/25, Prologis filed and served a motion to strike the Third Amended Complaint on the ground that it was untimely filed and a demurrer to the Third Amended Complaint which were scheduled for hearing on 12/12/25. On 10/9/25, pursuant to a stipulation between Plaintiff and Defendants Macdermid Enthone, Inc. and Miles Chemical Company, the Court ordered that Macdermid Enthone, Inc. and Miles Chemical Company had until 11/7/25 to file a response to the Third Amended Complaint and Plaintiff had until 11/7/25 to file a further amended complaint. (See 10/9/25 Stipulation and Order).

On 11/12/25, Plaintiff filed the subject Fourth Amended Complaint (4AC) which was served on 11/7/25.

The Fourth Amended Complaint alleges the following causes of action: (1) Negligence for Wrongful Death against “all defendants including Does 1 through 200, inclusive”; (2) Strict Products Liability against “all Chemical Defendants including Does 1 through 200, inclusive” (Chemical Defendants are defined as Miles Chemical Company, Inc. and Macdermid Enthone, Inc.) and (3) Survival Action “against Defendants and Does 1 through 200, inclusive.”

On 12/19/25, the Court sustained Prologis' demurrer to the 4AC without leave to amend. On 1/5/26, the Court entered a judgment of dismissal of Prologis with prejudice. On 1/6/26, filed Doe amendments naming Thermo Fisher Scientific aka Fisher Scientific in place of Doe 4 and naming Alfa Aesar in place of Doe 7. The demurrer notes that Thermo Fisher Scientific Inc. and Fisher Scientific Company LLC are separate legal entities and Thermo Fisher Scientific Inc. not also known as Fisher Scientific. Additionally, the demurrer notes that Alfa Aesar is not a corporate entity, but a defunct brand name formerly used by Thermo Fisher Scientific.

The 4AC alleges that "Defendants PROLOGIS TARGETS U.S. LOGISTICS FUND, L.P., PROLOGIS, L.P. and DOES 1 through 10, owned, managed, leased and marketed the premises" at which Decedent. (4AC ¶7).

After meet and confer efforts failed to resolve the issues, Thermo Fisher had with the 4AC, on 2/23/26, Thermo Fisher Scientific Inc., erroneously named as "Thermo Fisher Scientific aka Fisher Scientific" and "Alfa Aesar" (collectively, Thermo Fisher) filed and served the instant demurrer to the entire complaint. On 7/9/26, Thermo Fisher filed and served a Notice of Non-Opposition to the demurrer. On 7/14/26, at 4:37 p.m., Plaintiff filed an opposition to the demurrer which was served on 7/13/26. On 7/14/26, at 8:36 p.m., Thermo Fisher filed a reply to the opposition along with a Request to Strike Plaintiff's Untimely Opposition. (See Reply, Ex.A).

The only excuse/explanation for the late filing of the opposition is that the primary counsel on this case, Thomas Mortimer, died in November 2025 which "materially affected the continuity of case handling and the transition of responsibilities necessary to review, analyze, and act upon discovery." (See Orland Decl. ¶7). It is not clear why one of the other two law firms representing Plaintiff in this matter could not have timely opposed the demurrer in the 4+ months since it was filed and served or why Plaintiff's counsel could not have requested a continuance of the hearing after receipt of the Notice of Non-Opposition, rather than merely filing and serving an extremely late opposition.

Due to the late filings, the Court did not have

sufficient time to review the opposition and reply and prepare a tentative ruling. Therefore, after hearing oral argument, the Court will take the matter under submission.